

Note:

*Some applications allege discrimination on more than one ground, so the total may exceed 100%.

Table 5: HRTO Performance Measures

Table 5: HRTO Performance Measures

Hearings and Mediation	Target	2021-2022 % of time standard is met	2020-2021 % of time standard is met	2019-2020 % of time standard is met	2018-2019 % of time standard is met
First mediation date offered within 150 days of the date parties agree to mediation	80%	29%	26%	27%	62%
First hearing date offered within 180 days of the date the application is ready to proceed to hearing	80%	0%*	11%	7%	35%
Decisions for hearings which take 3 days or less will be issued within 90 days	80%	43%	42%	76%	76%
Decisions for hearings which take longer than 3 days, will be issued within 180 days	80%	60%	27%	50%	29%

Note:

*The HRTO has been engaged in COVID recovery efforts, including rescheduling the many events that were cancelled at the start of the pandemic. Rescheduled events moved scheduling timelines beyond targets for 2021/22. Timelines are expected to improve significantly once the HRTO has completed its full recovery from the pandemic.

[Return to Top](#)

Landlord and Tenant Board (LTB)

The LTB resolves applications related to residential tenancy disputes between landlords and tenants and eviction disputes in non-profit housing co-operatives.

The LTB's authority and jurisdiction are derived from the *Residential Tenancies Act, 2006* (RTA) and the *Statutory Powers Procedure Act*. The LTB is also mandated to provide information to landlords and tenants about their rights and responsibilities under the RTA.

In July 2020, the Ontario Legislature made a number of amendments to the RTA and one of its regulations. Most amendments took effect in 2020 and the remainder on September 1, 2021. A new application type allows landlords to apply to the LTB to claim compensation for unpaid rent, unpaid utilities, or damages to the rental unit for up to one year after the tenant has moved out. This and other amendments required changes to the LTB's rules and procedures, including creating new or amending existing LTB forms, brochures, practice directions and interpretation guidelines.

Operational Highlights

The LTB implemented several initiatives in 2021-2022 to continue to address backlogs and ensure timely and responsive service.

A key component to support these initiatives was the hiring of additional LTB staff to assist with application processing, scheduling and issuing of Notices of Hearings and orders.

The LTB continued its focus on building up its adjudicator complement with the onboarding of 16 additional adjudicators to assist with hearing backlogs. As of March 31, 2022, there were 39 full-time adjudicators and 51 part-time adjudicators making it the highest number of adjudicators ever appointed to the LTB.

In May 2021, the L_{TB} implemented a scheduling plan that prioritized mediation services, which allowed for more matters to be scheduled and heard. It included same day access to mediation services with a Dispute Resolution Officer (DRO) before moving forward to a hearing with an adjudicator. The plan also included conducting multiple tenant case management hearings in one hearing block with several DROs and resuming a two DRO team approach to Above Guideline Increase case management hearings.

Although COVID-19 related challenges have had a significant impact on L_{TB}'s caseload, and in particular the five-month moratorium on evictions from March to August 2020, progress is being made. In 2021-2022, the L_{TB} achieved a steady state of operations receiving 61,586 applications and resolving 61,868 files.

The L_{TB} is committed to ongoing engagement with stakeholders to solicit feedback and input and has continued to meet regularly with stakeholders on changes to rules and processes, in accordance with the Tribunals Ontario Consultation Policy.

Statistics

Table 1: L_{TB} Applications

Table 1: L_{TB} Applications

Application	2021-2022	2020-2021	2019-2020
Applications Received*	61,586	48,422	80,874
Applications Resolved**	61,868	35,983	72,064
Active Cases at Year-End***	32,800	34,731	22,803

Notes:

* The totals do not include non-profit co-operative housing eviction applications.

** In 2021-2022, the majority of applications were resolved at hearing (ordered by hearing contested or uncontested, or ordered by review) – 48%, through mediation (mediated or ordered by hearing mediated) – 11% and through withdrawals – 20%.

*** In a small number of cases, “resolved” applications are re-opened (e.g., when the L_{TB} grants a request for review or an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus “applications received,” less the “applications resolved.”

Table 2: Landlord Applications Received by Type

Table 2: Landlord Applications Received by Type

Case Type	Application Type	2021-2022	2020-2021	2019-2020	2018-2019
A1	Determine whether the act applies	115	96	102	126
A2	Sublet or assignment	376	383	491	378
A3	Combined application (usually includes an L1)	1,385	1,065	2,986	3,362
A4	Vary rent reduction amount	55	109	86	173
L1	Terminate & evict for non-payment of rent	31,130	24,481	44,621	46,043
L2	Terminate for other reasons and evict	13,852	11,031	15,732	13,945
L3	Termination – tenant gave notice or agreed	2,289	1,391	1,877	1,711
L4	Terminate the tenancy – failed settlement	3,545	1,551	5,156	5,571

L5	Rent increase above the guideline	613	404	758	717
L6	Review of provincial work order	0	1	1	4
L7	Transfer tenant to care home	3	6	1	5
L8	Tenant changed locks	35	25	41	39
L9	Application to collect rent	931	1,104	900	1,394
L10	Application to collect money a former tenant owes	7	N/A	N/A	N/A
Total		54,336	41,647	72,752	73,738

Table 3: Tenant Applications Received by Type

Table 3: Tenant Applications Received by Type

Case Type	Application Description	2021-2022	2020-2021	2019-2020	2018-2019
A1	Determine whether the act applies	80	64	85	116
A2	Sublet or assignment	59	74	62	66
A3	Combined application	870	583	1,610	1,780
A4	Vary rent reduction amount	1	1	0	1
T1	Rent rebate (e.g., illegal rent)	843	718	884	863
T2	Tenant rights	2,984	3,145	3,072	3,053
T3	Rent reduction	99	68	78	148
T4	Failed rent increase above guideline	8	4	4	1
T5	Bad faith notice of termination	550	316	408	355
T6	Maintenance	1,752	1,795	1,914	1,970
T7	Suite meters	4	7	5	4
Total		7,250	6,775	8,122	8,357

Table 4: Co-Op Applications Received by Type

Table 4: Co-Op Applications Received by Type

Case Type	Application Description	2021-2022	2020-2021	2019-2020	2018-2019
C1	Application to end the occupancy and evict the member based on non-payment of regular monthly housing charges and to collect the housing charges that the co-op member owes	124	88	217	251
C1/2	Combined C1 and C2 applications	61	32	116	118
C2	Application to end the occupancy of the member unit and evict the member	67	73	141	107

C3	Application to end the occupancy and evict the member – based on the member's consent or notice	3	3	3	6
C4	Application to end the occupancy of the member unit and evict the member because the member failed to meet conditions of a settlement/order	45	22	91	81
Total		300	218	568	563

Table 5: Call Centre

Table 5: Call Centre

Calls	2021-2022	2020-2021	2019-2020	2018-2019
Calls handled	164,521	197,927	201,871	242,892
Average time per call	5:00	5:03	4:37	4:48
Average wait time in the queue	22:46	15:57	17:36	15:18

Table 6: LTB Performance Measures

Table 6: LTB Performance Measures

Performance Measure	Target	2021-2022*	2020-2021**	2019-2020
L1 and L9 applications will be scheduled for a hearing within 25 business days	80%	0.2% (74.4 days)	1% (131.7 days)	15% (45.6 days)
Decisions (Orders) for L1 and L9 applications will be issued within 4 business days at the conclusion of the final hearing	80%	7.9% (21.5 days)	21% (22.4 days)	58% (5.8 days)
All other LTB applications (excluding L5 and A4) will be scheduled for a hearing within 30 business days	80%	2.2% (103.1 days)	16% (108 days)	16% (52.7 days)
Decisions (Orders) for all other LTB applications (excluding L5 and A4) will be issued within 10 business days at the conclusion of the final hearing	80%	40% (37.7 days)	60% (28.8 days)	71% (11.7 days)

Notes:

*The LTB made a number of changes to address delays including establishing a process for an expedited hearing, updating a scheduling plan and actively engaging in the recruitment of adjudicators to assist with the caseload volume.

**LTB suspended most hearings related to eviction applications during the early months of the COVID-19 pandemic resulting in delays in the scheduling of hearings. Further, COVID-19 halted in-person hearings resulting in a transition period until a videoconferencing model was established for proceedings.

Table 7: Requests for Reviews

Table 7: Requests for Reviews

Requests	2021-2022	2020-2021	2019-2020
Total number of requests for review	2,452	1,370	3,238
Denied requests for review	403	260	833

Requests for review sent to hearing	2,049	1,110	2,405
-------------------------------------	-------	-------	-------

[Return to Top](#)

Licence Appeal Tribunal (LAT)

The LAT adjudicates applications and resolves disputes concerning compensation claims and licensing activities regulated by the provincial government, including the activities of delegated administrative authorities. The LAT is currently comprised of two main divisions: General Service (LAT-GS) and Automobile Accident Benefits Service (LAT-AABS).

LAT's jurisdiction and authority are derived from:

- *Accessibility for Ontarians with Disabilities Act, 2005*
- *Alcohol and Gaming Commission of Ontario Act, 2019*
- *Auto Insurance Rate Stabilization Act*
- *Bailiffs Act*
- *Building Code Act, O. Reg. 332/12 Division C, Part 3*
- *Cannabis Licence Act, 2018*
- *Child Care and Early Years Act, 2014*
- *Child, Youth and Family Services Act, 2017*
- *Collection and Debt Settlement Services Act*
- *Compulsory Automobile Insurance Act*
- *Condominium Act, 1998*
- *Condominium Management Services Act, 2015*
- *Consumer Protection Act, 2002*
- *Consumer Reporting Act*
- *Discriminatory Business Practices Act, 1990*
- *Funeral, Burial and Cremation Services Act, 2022*
- *Gaming Control Act, 1992*
- *Highway Traffic Act*
- *Horse Racing Licence Act, 2015*
- *Intercountry Adoption Act*
- *Licence Appeal Tribunal Act, 1999*
- *Liquor Licence and Control Act, 2019*
- *Motor Vehicle Accident Claims Act*
- *Motor Vehicle Dealers Act, 2002*
- *New Home Construction Licensing Act, 2017 (NHCLA)*
- *Ontario New Home Warranties Plan Act*
- *Payday Loans Act, 2008*
- *Post-secondary Education Choice and Excellence Act, 2000 O. Reg. 279/02*
- *Private Career Colleges Act, 2005*
- *Private Security and Investigative Services Act, 2005*
- *Real Estate and Business Brokers Act, 2002*
- *Retirement Homes Act, 2010*
- *Statutory Powers Procedure Act*
- *Ticket Sales Act, 2017*
- *Travel Industry Act, 2002*
- *Vintners Quality Alliance Act, 1999*

Operational Highlights

LAT continued to focus on digital-first initiatives that provided users with more convenient access to virtual hearings that remained in line with Tribunals Ontario's digital approach to providing dispute resolution services.

On January 31, 2022, LAT-GS launched a new online payment portal for users to pay for an appeal or application. The portal is a quick, convenient and secure way to pay filing fees online.

On March 21, 2022, LAT-AABS launched a canvassing-based scheduling model for all oral adjudicative events in response to stakeholder feedback and to create operational efficiencies. The expanded canvassing-based scheduling model gave parties the opportunity to select case conference and oral hearing dates that worked best for them. This also allowed all parties to participate in a process that is fair, transparent, convenient and timely.